SLEEK

INDEPENDENT PERSONAL TRAINER AGREEMENT

Effective Date: ________________

This Independent Personal Trainer Agreement ("Agreement") is entered into by and between:

"Company" — Sleek Fitness LLC, located at Koreatown Plaza, 928 S Western Ave, STE 333, Los Angeles, CA 90006

"Trainer" — ____________________________________ (Legal Name)

Collectively referred to as the "Parties."

1. RECITALS

WHEREAS, the Company operates a fitness facility and provides a platform, brand, facility access, and client referral infrastructure for the delivery of personal training services; and

WHEREAS, the Trainer is a qualified fitness professional who desires to utilize the Company's facilities, brand, and referral network to conduct personal training services on an independent contractor basis; and

WHEREAS, the Parties intend that the Trainer shall operate in a capacity analogous to that of a licensed real estate agent affiliated with a brokerage—utilizing the Company's infrastructure while maintaining independent control over methods, scheduling, and client relationships;

NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth herein, the Parties agree as follows:

2. INDEPENDENT CONTRACTOR STATUS

a. Independent Contractor. The Trainer is an independent contractor and is NOT an employee, partner, agent, or joint venturer of the Company. Nothing in this Agreement shall be construed to create an employer-employee relationship.

b. No Employee Benefits. The Trainer shall not be entitled to any employee benefits, including but not limited to health insurance, workers' compensation, unemployment insurance, retirement plans, paid leave, or any other benefits afforded to employees of the Company.

c. Taxes. The Trainer is solely responsible for all federal, state, and local taxes, including self-employment taxes, income taxes, and any other applicable taxes. The Company will issue an IRS Form 1099-NEC for compensation paid to the Trainer in excess of $600 in any calendar year.

d. No Authority to Bind. The Trainer has no authority to enter into contracts, make representations, or incur obligations on behalf of the Company unless expressly authorized in writing.

3. TRAINER'S OBLIGATIONS AND DUTIES

a. Provision of Services. The Trainer shall provide personal training, fitness coaching, and related services ("Services") to clients at the Company's facility. The Trainer may also provide services at off-site locations not operated by the Company, subject to the non-compete provisions herein.

b. Licensing and Certification. The Trainer shall at all times maintain current and valid:
   - Personal training certification from a nationally recognized accrediting organization (e.g., NASM, ACE, ACSM, NSCA, ISSA, or equivalent)
   - CPR/AED certification
   - Any other certifications or licenses required by the State of California or the City of Los Angeles

   The Trainer shall provide copies of all certifications to the Company prior to commencing services and promptly upon renewal.

c. Insurance. The Trainer shall obtain and maintain, at Trainer's sole expense, professional liability (errors and omissions) insurance and general liability insurance, each with minimum coverage of $1,000,000 per occurrence and $2,000,000 aggregate. The Company shall be named as an additional insured on all such policies. Proof of insurance shall be provided prior to commencing services and annually thereafter.

d. Professional Standards. The Trainer shall:
   - Conduct all services in a professional, ethical, and competent manner
   - Adhere to the scope of practice defined by Trainer's certification(s)
   - Not diagnose medical conditions, prescribe diets (unless separately licensed as a dietitian/nutritionist), or provide services outside the scope of personal training
   - Comply with all applicable federal, state, and local laws and regulations
   - Maintain a professional appearance consistent with the Company's brand standards

e. Client Agreements. The Trainer shall ensure that every client signs the Company's standard Client Agreement and Liability Waiver prior to commencing any training session at the Company's facility.

f. Equipment Care. The Trainer shall use the Company's equipment in accordance with manufacturer guidelines, report any damage or malfunction immediately, and shall be financially responsible for any damage caused by the Trainer's negligence or misuse.

g. Compliance with Facility Rules. The Trainer shall comply with all Company facility rules, policies, and procedures as communicated in writing from time to time, including but not limited to hours of operation, cleanliness standards, and safety protocols.

4. COMPANY'S OBLIGATIONS

a. Facility Access. The Company shall provide the Trainer with reasonable access to the Company's fitness facility, equipment, and amenities during operating hours for the purpose of conducting training sessions.

b. Brand and Marketing. The Company may, at its discretion, feature the Trainer on its website, social media, and marketing materials. The Trainer grants the Company a non-exclusive, royalty-free license to use the Trainer's name, likeness, biography, and professional credentials for promotional purposes during the term of this Agreement.

c. Client Referrals. The Company may refer prospective clients to the Trainer. Such referrals are made at the Company's sole discretion and the Company makes no guarantee of any minimum number of referrals or client volume.

d. Administrative Support. The Company may, at its discretion, provide scheduling, billing, and payment processing infrastructure for client sessions.

5. COMPENSATION AND COMMISSION STRUCTURE

a. **Revenue Split.** For all personal training sessions conducted at the Company's facility, the gross revenue collected from the client shall be split as follows:
   - Trainer: _____% of gross session revenue
   - Company: _____% of gross session revenue

b. **Company-Referred Clients.** For clients referred to the Trainer by the Company, the Company shall receive an additional referral fee of _____% of gross session revenue for the first _____ sessions, after which the standard split in Section 5(a) shall apply.

c. **Trainer-Sourced Clients.** For clients independently sourced by the Trainer who train at the Company's facility, the standard split in Section 5(a) shall apply.

d. **Payment Schedule.** The Company shall remit the Trainer's share of compensation on a [bi-weekly / monthly] basis, no later than the _____ day of the applicable pay period. Payment shall be made via [direct deposit / check / other: __________].

e. **No Guaranteed Minimum.** The Company does not guarantee any minimum level of compensation, client volume, or session bookings. The Trainer's income is entirely dependent on the Trainer's own efforts, client relationships, and market conditions.

f. **Facility Fee (if applicable).** In lieu of or in addition to the revenue split, the Trainer may be required to pay a monthly facility access fee of $_________ per month, due on the 1st of each month. [Strike if not applicable.]

6. CONTROL AND AUTONOMY

a. **Method and Manner.** The Trainer shall have full control over the methods, techniques, and manner of performing the Services. The Company shall not dictate the specific exercises, programs, or training methodologies used by the Trainer.

b. **Scheduling.** The Trainer shall set the Trainer's own schedule and is free to accept or decline client sessions at the Trainer's discretion. The Company may establish reasonable facility availability windows but shall not mandate specific working hours.

c. **Right to Work Elsewhere.** The Trainer is free to provide personal training services to other facilities, clients, or businesses, subject to the non-solicitation and non-compete provisions of this Agreement.

d. **Assistants and Substitutes.** The Trainer may, with prior written approval from the Company, engage assistants or substitute trainers to perform services, provided such individuals meet the Company's certification and insurance requirements.

7. NON-SOLICITATION AND NON-COMPETE

a. **Non-Solicitation of Company-Referred Clients.** During the term of this Agreement and for a period of twelve (12) months following termination, the Trainer shall not directly or indirectly solicit, contact, or provide personal training services to any client who was referred to the Trainer by the Company, for the purpose of diverting such client away from the Company's facility, unless the Trainer pays a buyout fee of $_________ per client.

b. **Non-Solicitation of Trainers.** During the term and for twelve (12) months following termination, the Trainer shall not solicit, recruit, or encourage any other trainer affiliated with the Company to leave or terminate their relationship with the Company.

c. **Trainer-Sourced Clients.** For clarity, clients independently sourced and developed by the Trainer prior to or independently of the Company are the Trainer's own clients. Upon termination, the Trainer may continue to service such clients at a location other than the Company's facility without restriction.

d. **California Law Notice.** The Parties acknowledge that California Business and Professions Code Section 16600 generally voids non-compete agreements. The non-solicitation provisions herein are intended to protect the Company's legitimate business interests in its client relationships and referral network and are narrowly tailored to achieve that purpose. To the extent any provision is found to be unenforceable under California law, such provision shall be reformed to the minimum extent necessary to be enforceable.

8. CONFIDENTIALITY

a. **Confidential Information.** The Trainer acknowledges that during the course of this Agreement, the Trainer may receive or have access to confidential and proprietary information of the Company, including but not limited to: client lists, contact information, financial data, business strategies, pricing, marketing plans, and operational procedures ("Confidential Information").

b. **Non-Disclosure.** The Trainer shall not, during the term or at any time thereafter, disclose, use, or permit the use of any Confidential Information for any purpose other than the performance of Services under this Agreement, unless authorized in writing by the Company or required by law.

c. **Return of Materials.** Upon termination of this Agreement, the Trainer shall promptly return or destroy all documents, files, and materials containing Confidential Information.

9. INTELLECTUAL PROPERTY

a. **Company IP.** The Company's name, logo, trademarks, branding, marketing materials, and proprietary systems ("Company IP") are and shall remain the sole property of the Company. The Trainer is granted a limited, non-exclusive, non-transferable, revocable license to use Company IP solely for the purpose of marketing the Trainer's services in connection with the Company during the term of this Agreement.

b. **Trainer IP.** Any training programs, methodologies, curricula, or content independently created by the Trainer ("Trainer IP") shall remain the sole property of the Trainer.

c. **Jointly Developed IP.** Any materials, programs, or content jointly developed by the Trainer and the Company shall be jointly owned, and each Party shall have the right to use such materials independently.

10. INDEMNIFICATION AND LIABILITY

a. **Trainer Indemnification.** The Trainer shall indemnify, defend, and hold harmless the Company, its owners, officers, directors, members, managers, employees, agents, and affiliates from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to:
   - The Trainer's performance or failure to perform the Services
   - Any injury, death, or property damage caused by the Trainer's acts, omissions, or negligence
   - Any breach of this Agreement by the Trainer
   - Any claim that the Trainer is an employee of the Company
   - Any violation of applicable law by the Trainer

b. **Company Indemnification.** The Company shall indemnify, defend, and hold harmless the Trainer from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or related to the Company's negligence or breach of this Agreement.

c. **Limitation of Liability.** In no event shall either Party be liable to the other for any indirect, incidental, special, consequential, or punitive damages, regardless of the cause of action or theory of liability.

11. TERM AND TERMINATION

a. **Term.** This Agreement shall commence on the Effective Date and shall continue for an initial term of ______ months / one (1) year, unless earlier terminated as provided herein. After the initial term, this Agreement shall automatically renew for successive ______ month periods unless either Party provides written notice of non-renewal at least thirty (30) days prior to the end of the then-current term.

b. **Termination Without Cause.** Either Party may terminate this Agreement at any time, for any reason or no reason, by providing thirty (30) days' written notice to the other Party.

c. **Termination for Cause.** Either Party may terminate this Agreement immediately upon written notice if the other Party:
   - Materially breaches any term of this Agreement and fails to cure such breach within fifteen (15) days of written notice
   - Engages in fraud, dishonesty, gross misconduct, or illegal activity
   - Loses any required certification, license, or insurance coverage
   - Engages in conduct that brings disrepute to the other Party or the Company's brand

d. **Effect of Termination.** Upon termination:
   - The Trainer shall immediately cease using Company IP and representing any affiliation with the Company
   - All outstanding compensation shall be paid within thirty (30) days
   - The confidentiality, non-solicitation, indemnification, and intellectual property provisions shall survive termination
   - The Trainer shall return all Company property, including keys, access cards, and materials

12. DISPUTE RESOLUTION

a. **Mediation.** The Parties agree to first attempt to resolve any dispute arising out of or relating to this Agreement through good-faith mediation administered by a mutually agreed mediator in Los Angeles County, California.
b. **Arbitration.** If mediation is unsuccessful, any dispute shall be resolved by binding arbitration administered by JAMS or the American Arbitration Association in Los Angeles County, California, in accordance with its then-current commercial arbitration rules. The arbitrator's decision shall be final and binding and may be entered as a judgment in any court of competent jurisdiction.
c. **Attorneys' Fees.** The prevailing Party in any dispute shall be entitled to recover its reasonable attorneys' fees and costs from the non-prevailing Party.
d. **Governing Law.** This Agreement shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws principles.

13. GENERAL PROVISIONS

a. **Entire Agreement.** This Agreement constitutes the entire agreement between the Parties with respect to its subject matter and supersedes all prior and contemporaneous agreements, negotiations, and understandings, whether oral or written.
b. **Amendments.** This Agreement may not be amended or modified except by a written instrument signed by both Parties.
c. **Severability.** If any provision of this Agreement is held to be invalid, illegal, or unenforceable, the remaining provisions shall continue in full force and effect.
d. **Waiver.** The failure of either Party to enforce any provision of this Agreement shall not constitute a waiver of that Party's right to enforce that provision or any other provision in the future.
e. **Notices.** All notices required or permitted under this Agreement shall be in writing and shall be deemed delivered when: (i) delivered personally; (ii) sent by email with confirmation of receipt; or (iii) three (3) business days after being sent by certified mail, return receipt requested, to the addresses set forth above.
f. **Assignment.** The Trainer may not assign or transfer this Agreement or any rights or obligations hereunder without the prior written consent of the Company. The Company may assign this Agreement in connection with a merger, acquisition, or sale of substantially all of its assets.
g. **Counterparts.** This Agreement may be executed in counterparts, each of which shall be deemed an original, and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed valid and binding.
h. **Headings.** The section headings in this Agreement are for convenience only and shall not affect the interpretation of any provision.

14. ACKNOWLEDGMENTS

By signing below, the Trainer acknowledges and agrees that:

a. The Trainer has read, understands, and voluntarily agrees to the terms of this Agreement.
b. The Trainer has had the opportunity to seek independent legal counsel before signing this Agreement.
c. The Trainer understands that the Trainer is an independent contractor and not an employee of the Company.
d. The Trainer is responsible for the Trainer's own taxes, insurance, and business expenses.
e. The Trainer's relationship with the Company is analogous to that of an independent real estate agent affiliated with a brokerage—the Company provides the brand, facility, and infrastructure, while the Trainer retains autonomy over methods, schedule, and client relationships.

COMPANY

Sleek Fitness LLC

Authorized Signature

Printed Name & Title

Date

TRAINER

(Independent Contractor)

Signature

Printed Name

Date

Certification(s) & Expiration Date(s)

Insurance Policy Number & Provider